

Calendar Lines # 6-7
Case Name Anh Truong et al vs Jalen Fooster-Barrino et al
Case No. 25CV460510
Motion to Compel Responses to Form Interrogatories, Special Interrogatories, and Request for Production of Documents, (Line #6); and Motion for Admissions Deemed Admitted (Line #7)
<u>I. BACKGROUND</u> This matter was continued from February 24, 2026, at that time, counsel for plaintiff, Clinton Keyworth and counsel for the defendant, Sean Moriarty appeared and informed the court that the parties reached an agreement. Mr. Keyworth withdrew his motion for monetary sanctions. No notice of settlement was filed. The motions were continued to March 19, 2026, where parties requested a second continuance to this date. <u>II. LEGAL ANALYSIS</u> Pursuant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within 30 days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (<i>Id.</i>, § 2030.290, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See <i>Id.</i>, § 2030.290; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 411). Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a)). California courts have taken a liberal approach to permissible discovery, which has led the courts to resolve any doubt in favor of permitting discovery. (<i>Pacific Tel. & Tel. Co. v. Superior Court</i> (1970) 2 Cal.3d 161, 173 (“In accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded in determining whether discovery is reasonably calculated to lead to admissible evidence). (<i>Id.</i> at 172; <i>see also</i>, <i>Pettie v. Superior Court</i> (1960) 178 Cal.App.2d 680, 687). As a practical matter, it is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. (<i>Pacific Tel. & Tel. Co.</i>, <i>supra</i>, 2 Cal.3d at p. 172). The courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the non-discoverable rather than denying discovery of information vital to preparation or presentation of the party's case or to efficacious settlement of the dispute.” (<i>Norton v. Superior Court</i> (1994) 24 Cal.App.4th 1750, 1761). “As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims.” (<i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 550). Indeed, a litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (<i>Id.</i> at p. 541, citing <i>West Pico Furniture Co. v. Superior Court</i> (1961) 56 Cal.2d 407, 422). Code of Civil Procedure section 2031.010(d) allows a party to “demand that any other party allow the party making the demand, or someone acting on the demanding party’s behalf, to enter on any land or other property that is in the possession, custody, or control of the party on whom the demand is made, and to inspect and to measure, survey, photograph, test, or sample the land or other property, or any designated object or operation on it.” Such a demand may be “without leave of court at any time that is 10 days after the service of the summons on, or appearance by, the party to whom the demand is directed, whichever occurs first.” (Code Civ. Proc., § 2031.020(b)). “The party making a demand for inspection, copying, testing, or sampling shall serve a copy of the demand on the party to whom it is directed and on all other parties who have appeared in the action.” (Code Civ. Proc., § 2031.040). If no

response is served, the party making the demand may move for an order compelling response to the demand. (Code Civ. Proc., § 2031.300(b)).

Under Code of Civil Procedure section 2023.010:

“If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply: . . . (b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).” Plaintiffs also assert that the Defendant has waived any objection to the requests based on its failure to respond. Code of Civil Procedure section 2031.300 and 2030.290.

III. ANALYSIS

On December 23, 2025, Plaintiffs Anh D. Truong and Kyle Victor Wong filed a Motion to Compel Defendant Jalen Fooster-Barrino’s Response to Interrogatories and Request for production of Documents; Motion for Admissions Deemed Admitted and Motions for Sanctions. Per Code of Civil Procedure section 1005(b) opposition papers were due on February 9, 2026. The defendant filed untimely opposition papers a day before the initial hearing on February 23.

On August 28, 2025, Plaintiff served initial written interrogatories, including Form Interrogatories, Special Interrogatories, Request for Production, and Request for Admissions, Set One on Defendant accompanied by proof of services via electronic service on the Defendant that same day. Code of Civil Procedure section 2030.260(a) provides that parties provide verified responses within 30 days after service of discovery. Responses were due on September 29, 2025, but parties agreed to three separate extensions at the request of Defendant. Per Plaintiff, as of December 23, 2025, Defendant failed to provide verified responses to the above written discovery.

In its opposition papers, the defense attorney represented that despite good faith efforts, he had been unable to contact the defendant and essentially lost contact. Three separate attorneys from the defendant’s law firm attempted to reach the defendant. The insurance carrier authorized a private investigator to make contact with the defendant. The defendant’s attached Exhibit C to its moving papers, which was a final draft of the defendant’s discovery, but lacked verification.

IV. CONCLUSION

Based on the foregoing, the motion to compel verified answers on initial written discovery FROG, SPROG, and RFPD, set one (Line #6) is GRANTED. Defendant is ORDERED to provide verified code-compliant responses within thirty (30) days of this hearing.

The motion for admissions to be deemed admitted (Line #7) is GRANTED.

The motion for sanctions has been withdrawn on February 24 by the moving party.

The Court will prepare the Order.

\\
\\
\\

Calendar Lines # 8-9
Case Name Christopher Wischmann et al vs George Aleuy et al
Case No. 25CV466345
Motion to Compel Further Responses to Special Interrogatories (Line #8); and Motion to Compel Further Responses to Request for Production of Documents (Line #9); Sanctions
I. <u>BACKGROUND</u> A. BRIEF FACTUAL SUMMARY This business tort claim stems from a Complaint filed in May 2025 by Plaintiffs Christopher Wischmann and Athena Global, LLC (collectively “Plaintiffs”) against Defendants George Aleuy, Robbie Aluey, and GEO Investment Properties, LLC (collectively “Defendants”). Plaintiffs filed its First Amended Complaint (“FAC”) in June 2025, alleging six causes of actions, including: (1) declaratory relief against Defendants; (2) violation of Corporation Code sections 17701.13 and 17704.10 against Defendant George Aleuy; (3) violation of Business and Profession Code section 17200 et seq., against all Defendants; (4) conversion against all Defendants; (5) accounting against Defendant George Aleuy; and (6) injunctive relief against all Defendants. Defendants filed an Answer to the FAC in August 2025 and filed a Cross-Complaint. Plaintiffs filed an Answer to the cross-complaint in September 2025. B. RELEVANT PROCEDURAL SUMMARY Before the Court is Plaintiffs motion to compel Defendant George Aleuy’s further responses to special interrogatories (“SPROG”), set one, No. 25 (Line # 8), and further response to request for production of documents (“RFPD”), set one, No. 27 (Line # 9), and sanctions. Plaintiff filed the motion on January 16, 2026, and the motions were accompanied by a proof of service indicating electronic mail to defense counsel on that same day. Defendants filed an opposition on September 9, 2026. Plaintiffs filed a reply brief on September 15, 2026. The Court has carefully reviewed the following: Plaintiffs’ notice of motion to compel SPROG, set one and memorandum of points and authorities (“MPA”) in support of motion to compel SPROG (totaling 8 pages); Declaration of James J. Huang and attached Exhibits A-C (totaling 58 pages); Declaration of Christopher Wischmann in support and attached Exhibits A-G (totaling 22 pages); separate statement in support of SPROG (totaling 4 pages); Plaintiffs’ notice of motion to compel RFPD, set one and memorandum of points and authorities (“MPA”) in support of motion to compel RFPD (totaling 8 pages); Declaration of James J. Huang and attached Exhibits A-C (totaling 58 pages); Declaration of Christopher Wischmann in support and attached Exhibits A-G (totaling 22 pages); separate statement in support of RFPD (totaling 4 pages); Defendants’ Opposition (totaling 10 pages); Declaration of Dennis Chin and attached Exhibits A-D in support of the Opposition (totaling 124 pages); Plaintiff’s reply brief (totaling 12 pages); proofs of services; and the pleadings. II. <u>LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 2017.010: “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.”